

Professional Practices- week5

Cyber Law and Intellectual property Law



- ☐ **INTELLECTUAL PROPERTY RIGHTS AND LAW.**
- ☐ **HOW TO REGISTER INTELLECTUAL PROPERTY.**
- ☐ **WHAT IS PLAGIARISM.**
- ☐ **WHAT IS CYBER LAW.**
- ☐ **INTERNATIONAL CYBER LAWS.**
- ☐ **CYBER LAWS IN PAKISTAN.**
- ☐ **PUNISHMENT FOR COMMITTING CYBER CRIME.**

INTELLECTUAL PROPERTY RIGHTS



- ❑ Intellectual property and intellectual property rights are often the most valuable assets owned by any organization or company or institution.
- ❑ The following must be safe and protected :-
 - All the information stored on computers and electronic devices
 - all of the paperwork and documentation such as computer programs, user manuals and information on the Web.

INTELLECTUAL PROPERTY RIGHTS (CONTINUE)



- ❑ Unauthorized use of intellectual property should be stopped by law and damages should be recovered.
- ❑ The law is constantly changing with technological advance, for that GATT is introduced by 23 founding members.
- ❑ General Agreement on Tariffs and Trade (GATT) covers the intellectual property rights, it is the only multilateral, legally binding.
- ❑ GATT is a legal agreement between companies and countries and covers 90% of trade but still some countries are still not a part.

Does GATT Covers Intellectual Property



- ❑ The General agreement on Tariffs and trade (GATT) is a legal agreement between many countries whose overall purpose is to promote international trade by reducing or eliminating trade barriers such as tariffs or quotas.
- ❑ **International law** includes Article XX(d) of GATT 1947 now Article XX(d) of GATT 1994 specifically referred to intellectual property rights.
- ❑ **In Pakistan** the copyright ordinance 1962, the patent ordinance 2000, and the trade marks ordinance 2001 cover GATT.

Confidential Information



- ❑ GATT covers :-
- ❑ Confidential Information
which is not public property and should not be shown to public
- ❑ Examples of confidential information
 - personal information e.g. password of your email account
 - trade secrets
 - sensitive government information
 - any or all of which a computer scientist handles in his/her work e.g. algorithms, computer programs etc.
 - all or any information to protect against unauthorized use or access
- ❑ Non-confidential information can be used by anybody

Plagiarism



- ❑ If you take someone else's work or ideas and passing them to others showing that it is your own work, it is called plagiarism.
- ❑ All of the following are considered plagiarism:-
 - ❑ Claiming someone else's work as your own.
 - ❑ Copying words or ideas from someone else without giving credit or reference.
 - ❑ With out citation use some one's work.

Cybercrime



- ❑ It is a crime involving a computer or computer network.
- ❑ The computer may have been used in committing the crime, or it may be the target, cybercrime may harm computer hardware, software, data or finances. Types includes :-
 - Fraud.
 - Embezzlement.
 - Software/Information Sabotage.
 - Information (Data) Theft.
 - Hacking and Cracking.
 - Digital Forgery.

Cyber law



- ❑ It is the area of law that deals with all types of cyber crimes, which are through the Internet.
- ❑ Cyber law is used to prevent or reduce all types of cyber crimes including unauthorized information access to computers and cell phones, privacy, communications (including emails), intellectual property, websites, software, hardware, data, databases and storage devices.
- ❑ The cyber laws vary worldwide from country to country.
- ❑ The punishments include fines and imprisonment.

Cyber law in Pakistan



- ❑ The Government of Pakistan has established the “National Response Centre for Cybercrime,” (NR3C) under the administrative control of Federal Investigation Agency (FIA), to investigate the cybercrimes, trace the criminals and use their efforts to stop misuse of the internet.

Link of NR3C



https://www.nr3c.gov.pk/about_us.html

Punishment



- ❑ Spreading false information about an individual: up to 3 years in prison or up to PKR 1 million in fine, or both .
- ❑ If someone intentionally and publicly displays any information through any information system, which he or she knows to be false and by which he or she intimidates or harms the reputation or privacy of a natural person

Cybercrime through Social Media



- ❑ Rafay Baloch is a Pakistani security researcher worked on Android operating system known for ethical hacker.
- ❑ Since social media is also used through internet, a lot of crimes are taking place on Facebook, LinkedIn, Twitter, WhatsApp, instagram, Twitter, Tik Tok, Twitch, Ramble etc.

Cybercrime through Social Media



- ❑ Examples includes :-
- ❑ Phishing attacks (**Fraudulent attempt**), stealing username passwords financial details etc..
- ❑ **Identity theft** (stealing someone information and use it for malicious purpose.
- ❑ **Fake News** about individual or group/ private or Govt organization.
- ❑ Online scams (Fraudulent attempt).
- ❑ Mental and emotional Health (**cyber bullying**).

Cyber Laws in the World



- ❑ Federal Trade commission ACT(FTCA) **(USA)**
- ❑ Electronic Commerce Act **(Ireland).**
- ❑ Electronic Transactions Act **(UK, USA, Australia, New Zealand, Singapore).**
- ❑ Electronic Transactions Ordinance **(Hong Kong).**
- ❑ Information Technology Act **(India).**
- ❑ Information Communication Technology Act Draft **(Bangladesh).**

Cyber Laws in Pakistan



- There are different laws in Pakistan.
- These laws not only deal with crime of Internet, also deal with all dimensions related to computer & networks.
- Two of them are most known. They are:
 - Electronic Transaction **Ordinance 2002**
 - Electronic / Cyber Crime **Bill 2007**



END